Work Smart

Gig Trap

Algorithms, Wage and Labor Exploitation in Platform Work in the US

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Summary

The future of work is already here. Workers around the world are increasingly hired, compensated, disciplined, and fired by algorithms that can be opaque, error-prone, and discriminatory. Gig work, office hedge-wages, email exchanges, browsing histories, keystrokes, driving patterns, and new times are scanned to monitor performance and productivity; even activities outside work hours and beyond the workplace are tracked and monitored, and data and averages are fed into algorithms to supervise surveillance and scrutiny.

Many of these practices have been normalized, if not pioneered, by digital labor platforms, which hold workers to perform jobs on "gig" offered through their apps or websites. In 2021, the International Labor Organization counted over 777 active digital labor platforms facilitating web-based microtasks, and over 400 active globally, spanning from India and South Africa to the United States. Within two years, the number of platform companies has multiplied nearly 10 times, from the 140 platforms recorded in 2020. Many of these platforms also rely on a workforce of independent contractors, who are not entitled to the labor and business model's rapidly spreading across multiple sectors of the global economy, including hospitality, health care, and software engineering. The majority of platform companies (70 percent) are situated in four countries. Within the US countries, 37 percent of platform companies are based in the US and 10 percent are in the European Union.

The US is home to one of the largest markets for labor-directed through digital platforms, and to the largest number of platform companies. Nearly one-third of platform companies in the US have headquarters in digital labor platforms in the sector. There are around 40 million workers reported that this was their main source of income. Retail delivery is the most common form of digital labor, followed by performing household tasks, providing rides, grocery delivery, and package delivery.

The growth of digital labor platforms, fueled by the promise that workers can live on their own schedules and be their own boss, has undermined decades-old labor law regulation and enforcement, denying workers hard-won rights to an adequate standard of living and safe and healthy working conditions.

The business model of wages platforms in the US exploits the prospect of flexible work to classify platform workers as independent contractors. This weight of labor enables platforms to avoid certain taxes and employer obligations, among labor law, tax, and other regulations, including minimum wage and overtime, not entitled to wage and other protections guaranteed to employees, such as minimum wage, overtime pay, unemployment insurance, workers' compensation, and paid sick leave. These protections are critical to the ability of workers to an adequate standard of living, and safe and healthy working conditions.

Despite forgoing these protections, many platform workers, at least the same freedoms that independent contractors are supposed to have, such as the freedom to negotiate basic aspects of their work, including how much they are paid. Instead, the platforms studied in this report—Uber, Lyft, DoorDash, Instacart, and Amazon Flex—unilaterally determine the rates workers earn for their wage exploitation. All except Instacart Flex use opaque and ever-changing algorithms that keep workers in the dark about how their pay is calculated.

Independent contractors should also be able to meaningfully control their schedules and how they do their work. Platform workers are subject to the mercy of complex algorithmic systems that regulate the frequency and profitability of job requests offered to each worker based on their compliance with performance metrics, such as maintaining high customer satisfaction ratings or accepting enough of these deliveries.

Without labor protections or bargaining power, platform workers, particularly those who work full-time, are vulnerable to wages below living and minimum wage standards, wage theft, income instability, physical injury while on the job, and unexplained things without meaningful recourse.

Human Rights Watch interviewed 42 platform workers in the US between 2020 and 2021, in the states of Alabama, California, Florida, Illinois, Massachusetts, Michigan, North Carolina, Ohio, Texas, Wisconsin, Oregon, Washington, and New York. Human Rights Watch also conducted a survey in 20 of 50 platform workers in Texas, which has one of the country's weakest labor protections.

The unpredictability survey, the first of its kind in the state, is not generalizable to all workers in Texas, but underscores the precarious nature of platform work and the ways that especially obscure. It found that the median wage earning these surveyed was just US$3.13 per hour after deducting work-related expenses and leverage benefits that form part of employee compensation. This is nearly 40 percent below the federal minimum wage, which has not kept pace with productivity or inflation in decades, and roughly 70 percent below the living wage needed for single adults with no dependents to meet their rights in the state.

Hourly Wages in Texas

Comparison of hourly wages for platform workers Human Rights Watch surveyed in Texas against other wages statistics

Source: S. 2345 Raise the Wage Act of 2021, MIT Living Wage Calculator, US Department of Labor, Human Rights Watch survey of platform workers

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Illustrations of the survey respondents and their struggled to afford housing in the last year, either the majority stated that they struggled to afford food, groceries, electricity, and water. Forty-four respondents said that they would not be able to cover a basic emergency expense right now, while another 74 respondents said that they would make ends credit debt or borrow from family or friends to cover the expense.

Struggling to Get By

Responses to a Human Rights Watch survey of 127 platform workers in Texas

Source: Human Rights Watch survey conducted by Human Rights Watch between December 2021 and March 2021

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Alejandro G., a rideshare driver in Houston, told Human Rights Watch that he was walking "really good money" when he first started out in the years before. "But 'everything started getting tight' in June 2021, as miles became scarce, wait times between rides increased, and the share of passenger fees shrinked. "The gas is so static. There are hours when I make five per hour, and there are hours where I make 35 per hour" Alejandro said. "I'm 60 behind on bills, I'm behind on car and phone bill, and with the company and other personal breakages to a car, I'm 1,000 behind on bills." Alejandro's wife and two children also moved to the neighborhood the daily struggle with extreme financial uncertainty.

> There are nights when I am getting home at 4 or 5 a.m. in the morning and I don't like to work those hours, but I'm trying to make enough money. I'm 60 behind on bills, I'm behind on car and phone bill, and with the company and other personal breakages to a car, I'm 1,000 behind on bills.
>
> — Alejandro G., Houston, Texas

Financial distress is not the only problem hard workers face their employer. Drivers in their safety, health, and wellbeing on the roads and in their vehicles. Rideshare drivers and delivery workers face risks of accidents and physical injuries related to traveling long hours and distances. Drivers also face injury respondents said they had experienced at least one work-related car accident, while about a quarter said they had suffered from work-related injuries.

Threats on the Road and in Their Vehicles

Responses to a Human Rights Watch survey of 127 platform workers in Texas

Source: Human Rights Watch survey conducted by Human Rights Watch between December 2021 and March 2021

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Working alone can also increase the risk of exposure to eyesightings and other violent crimes. One in twenty drivers reported a sexual assault while working for platform companies. Women were more likely than men to experience sexual harassment, and women of color were more likely than white drivers to experience sexual harassment, while another one experienced. Several workers reported harassment and discrimination among the 127 workers Human Rights Watch surveyed in Texas, and said they did not have formal complaint about which working, as said that they experienced racial discrimination, and of said they had experienced sexual harassment or assault.

Risk of Exposure to Violent Crime

Responses to a Human Rights Watch survey of 127 platform workers in Texas

Source: Human Rights Watch survey conducted by Human Rights Watch between December 2021 and March 2021

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Significant gaps in labor and social protections in the US exacerbate these risks. Independent contractors are not entitled to workers' compensation, including workers' compensation in the event of work-related injuries. Financial support in the event they lose their job, paid medical leave in the event of illness, and paid family leave in the event they have to take time off to care for their loved ones. Of the 127 workers Human Rights Watch surveyed in Texas, 40 said that they did not have health insurance, while 10 said they were enrolled in Medicaid, the government-funded insurance program for people in low income. Some of the respondents said they had been hospitalized because of injuries, but they did not seek care sooner as they would have to if they were treated as employees.

In February 2021, Robert W. stepped over a curb and fractured foot area while delivering groceries for Shipt in College Station, Texas. "I had planned that out of work for two and a half months. Shipt helped with some of her medical expenses and paid for some of the losses she would have received if she was not injured. But it was not enough to cover her bills. "I got majorly behind," she said. Robert W. said he had to "beg" Shipt to "do the right thing" to avoid representation of his case and to keep a small case from hurting her. "I had to plead and beg, what you do get for? I pay for my car and continue to work? I pay for my insurance and not pay for my car, and not be able to work?"[1]

In October 2020, Julio R. was contacted while on a package delivery route for Amazon Flex.[2] He was closing the back door on the passenger side of his car, but an unlikely took off, unexpectedly had followed her and wanted for an opportunity to jump into the driver's seat. The police recovered her car that evening, but the packages she was supposed to deliver that day, but keys, wallet, and cell phone were gone. The car was also scratched and dented on both sides. Julio R. took a five day off to recover from the incident, but these were unpaid and she had no access to medical support after the incident occurred.[3]

Platform workers also face the threat of being fired or "deactivated" by an algorithm without meaningful recourse or explanation. Deactivation also makes a living on the platform. Digital labor platforms exercise virtually unfettered discretion over who they deactivate from the platform, for what reasons, and for how long. Of 127 workers Human Rights Watch surveyed in Texas, 14 said that they were "fearful" or "very fearful" of being deactivated, and 40 said they had experienced deactivation at least once. Of those that have been deactivated, nearly half said that the platform arbitrarily closed their of wrongdoing, indicating a high error rate.

A Lack of Stability

Responses to a Human Rights Watch survey of 127 platform workers in Texas

Source: Human Rights Watch survey conducted by Human Rights Watch between December 2021 and March 2021

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The automated process lacks meaningful due process, even though workers stand to lose their livelihoods. Workers who have been deactivated or experienced discriminatory related disputes through the platform's app or via email with call center workers that have little authority to remedy the original decision. Most of the workers Human Rights Watch surveyed who were deactivated said they were either not given an explanation of the decision or given an inadequate explanation. Almost all said they struggled to understand the process for appealing deactivations.

Platform workers' status as independent contractors also denies them their rights to organize and collectively bargain with their employers for better wages, benefits, and working conditions. Independent contractors are not entitled to the rights recognized gold for platform workers to form a union, known as the Protect the Right to Organize (PRO). Act has stalled in Congress after failing to advance in the US Senate. Workers have organized ad hoc campaigns against strategic lying, arbitrary deactivations, and shabby safety-focused resources to invest in services essential to human rights, including education, health care, and social security.

Based on raw data from the Census Bureau's Nonemployer Statistics, Human Rights Watch estimates that Texas contributed an estimated over $1.1 billion in nonemployer insurance contributions between 2015 and 2020 from platform companies, which underscores the economic importance of the state, which classified as employees. The second shortfall is likely much higher when accounting for unreported income.

Key Recommendations

Strengthening employment classification standards is a critical first step towards ensuring that workers have access to the protections and benefits to which workers are eligible for by wage and labor protections, should be consistent with the ILO's recommendation against "disguised employment relationships," where an employer "treats an individual as other than an employee in a manner that hides his or her true legal status as an employee."

One such standard is the "ABC test," which presumes a worker is an employee unless the employer shows that the worker is: (a) free from its control and direction in performing work certain the usual course of its business; and (c) independently established in that trade, occupation, or business. The US Congress should pass the PRO Act, which would make it illegal for employers to misclassify as workers classified as religious under the ABC test. The measure also bestows benefit from just and formally working conditions and pay a living wage sufficient to provide an adequate standard of living, covering the costs of everyday expenses on food, water, housing, energy, health care, childcare, clothing, transportation, and other. The US Congress should also pass a minimum wage increase living to the local context. Congress should also update the federal minimum wage and regularly adjust it to account for inflation.

The US should also develop regulations that protects platform workers from algorithmic wage discrimination, surveillance, and discrimination. The US should follow the Biden Administration's lead, which established an advisory committee on artificial intelligence and other technologies as a step in the right direction. The US should establish a federal data protection and privacy legislation that gives complainants greater protections with safeguards against algorithmic management. The US should establish a federal data protection law that sets meaningful limits on collecting and using the personal data of workers. It should also bans the use of algorithmic management practices that pose an unacceptable risk to workers' rights, such as using biometric data and facial recognition algorithms to determine wages, ratings based such education systems, and fully automated determinations. For practices that bear managerial risks, the US should mandate minimum transparency requirements, human rights impact assessments, and effective remedies for workers harmed by these systems.

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Glossary

Algorithm: A sequence of instructions that tells a computer how to perform certain tasks.

Algorithmic Impact Assessment: A tool for forecasting, outlining and assessing the potential impacts of an algorithmic system on a community or society, usually conducted before a system is deployed.

Artificial Intelligence (AI): There is no agreed definition of AI, but it is generally applied as an umbrella term to refer to a wide range of data-driven technologies

used to perform accomplishment tasks, including on machine learning and logic based methods.

Dualer: People working in a delivery driver capacity for US online food delivery company DoorDash.

Employee: A person who works for an employer and is entitled to benefits and protection under US employment laws.

Farm Bureau: Texas food delivery company Power orders in a delivery driver in Rumors?

Gamification: Design techniques that prompt platform or app users to engage with the technology in a particular way, for instance through incentive schemes, rewards systems, or feedback that incentivizes particular behaviors.

Gross hourly wage: Hourly wage after total related expenses and employer contributions to social security and other benefits, and before other employee income tax deductions or social security contributions.

Independent Contractor: Self-Employed A person who provides services maintaining control over the method of work while the payer only oversees the outcome, impacting both occupational security obligations and employment status.

Living Wage: A wage sufficient to provide an adequate standard of living, covering the costs of everyday expenses on food, water, housing, energy, healthcare, childcare, clothing, sanitation, transportation, education, and other expenses relevant to ensuring a decent living in the local context.

Misclassified worker: An individual who is incorrectly categorized as an independent contractor instead of an employee, which is a tactic that enables cost and wrong pricing benefits, circumventing internationally agreed labor law.

Remuneration: The total amount of money that a worker receives from an app, including tips, generally pay gap. This amount is equivalent to the total cost of an employer to an employee.

Remuneration after expenses: Work-related earnings after subtracting work-related expenses, also referred to as the costs of production.

Shift Dispute: Personal attempts who shop for and deliver groceries to customers within a set timeslots via the Shopper app from US platform Instacart.

Social insurance: Social security schemes financed through direct contributions, typically from both employers and workers. Also referred to as contributory programs.

Social assistance: Social security schemes financed through general taxation or the general budget. Also referred to as non-contributory programs.

Social security: as set forth in international human rights law, a range of programs, whether funded from contributions or through general taxation, that provide benefits to people in specified circumstances, such as old age, unemployment, employment injury, family and child support, maternity, disability, and survivors and orphans.

Social security contributions: Compulsory payments paid by the government or employer, usually that contribute towards a worker's contingent future social benefits.

Taxes: Required payments of money to governments that are used to provide public goods and services for the benefit of the community as a whole.

Transportation Network Company (TNC): A business that contracts passengers with drivers of private vehicles through digital platforms or apps. TNCs, such as Uber, Lyft, Didi, Ola, and Grab, are considered to be the modern equivalent of a brokerage with independent drivers contracted rather than traditional taxis or public transport.

Recommendations

To the United States Department of Labor (DOL)

- Clarify that, under Department of Labor rules establishing the economic realities test for assessing employment classification, all platform workers who are currently misclassified are eligible for protections under the Fair Labor Standards Act (FLSA).
- Strategically enforce the FLSA to ensure that all platform workers receive the minimum wage and respect for all hours worked. Workers should be paid on time and for all work completed.
- Ensure that all digital labor platforms comply with FLSA recordkeeping requirements, including maintaining records of workers' actual start and stopping time, average and median hourly pay rates, and all tipping or wage calculation formulas.
- Expand pay rate disclosure requirements to cover gross compensation and platform workers within a given company, also expanded rule should require both gross and net compensation to disclose the pay rate between the highest and median wages of platform workers providing services for a given company. By increasing transparency around income distribution across employment types, this disclosure would revisit wage disparities and offer policymakers more valuable information to strengthen their bargaining position.

To the US Congress

- Pass the PRO Act, which amends the National Labor Relations Act (NLRA) to strengthen collective bargaining protections and broaden its coverage to include workers that are classified as employees under the ABC test.
- Develop and pass comprehensive data protection law that contains meaningful protections for platform workers, including restrictions on collecting worker's personal data and using such data for work allocation and performance management functions.
- Develop and pass legislation that protects workers from abusive algorithmic management practices. Such legislation should ban practices that pose an unacceptable risk to workers' safety, health, and livelihoods, such as manipulative, coercive, or deceptive practices, including dynamic pricing and discrimination. Pay practices that pose manageable risks, such legislation should mandate transparency and notice requirements, human rights impact assessments, and effective remedies when these practices cause harm.
- Review and increase the federal minimum wage (currently $7.25 per hour) to a living wage sufficient to provide an adequate standard of living, covering the costs of everyday expenses on food, water, housing, energy, healthcare, childcare, clothing, sanitation, transportation, education, and other expenses relevant to ensuring a decent living in the local context.
- Develop and pass legislation to strengthen and adapt social security systems to provide adequate protection for platform workers. Ensure that digital platform workers are covered by unemployment and workers' compensation insurance and have access to affordable quality health care.
- Ensure that platforms are responsible for paying social security contributions on behalf of all workers, and where state benefits are not available, encourage them to provide benefits, such as medical and disability insurance, in line with local best practice.
- Overhaul the unemployment insurance program to protect all workers during job loss.
- Pass the Family and Medical Insurance Leave (FAMILY) Act, which would provide all workers up to 12 weeks of partial income when they take time for their own health or to care for children and support family members.
- Require platform companies to publish data on the earnings of platform workers on an annual basis broken down by units and time spent working (including waiting time). Platform companies' ownership of these data, and lack of access by workers, is a major information asymmetry between the platform companies and all other stakeholders.

To the Occupational Safety and Health Administration (OSHA)

- Regularly collect and publish data on workplace injuries for platform workers, including disaggregated by race and gender.
- Investigate workplace safety in the platform economy and extend existing health and safety legislation to include platform workers.
- Based on this research, require platform companies to adopt clear health and safety standards for their platform workers.

To the Federal Trade Commission (FTC)

- Investigate platform companies operating in the US and undertake enforcement actions to ensure platform workers can access and enjoy the human rights and labor rights they are entitled to, under international human rights law and standards.
- Make publicly available the findings of any investigations into platform companies' practices, including information that may be used in anticompetitive actions.
- Require risk forecasting and mitigation from platform companies using automated or algorithmic processes to collect information to manage their workforces, e.g., in managing and allocating jobs, determining pay, suspending or deactivating accounts. These include human rights impact assessments, algorithmic impact assessments, and similar tools.

To US State Governments

- Bolster current unemployment insurance criteria, using the "ABC" test to determine eligibility.
- Raise state minimum wages to at least a living wage sufficient to provide for an adequate standard of living.
- Take additional steps to ensure that all workers can readily access unemployment benefits when needed, and that benefit levels appropriately reflect the need to sustain an adequate standard of living.
- Develop and pass legislation to protect the rights of platform workers, including a ban on the use of dynamic pricing algorithms and an outright mandatory disclosure of work-related automation to workers, and effective remedies for discrimination.
- Pass legislation should clarify that platform companies are obligated to provide workers' compensation to all their workers, either through later than cover employees as well as independent contractors who work for them, or by classifying workers as employees.

To the State of Texas

- Rescind the 2019 Marketplace Contractor Rule and require digital labor platforms to pay state unemployment insurance taxes for their workers.
- Repeal the Transportation Network Companies Law, and permit localities to regulate digital labor platforms.
- Raise the state minimum wage to at least a living wage sufficient to provide for an adequate standard of living.

To Digital Labor Platforms

- Use clear and fixed formulas for calculating earnings, such as fixed time and distance rates or commission based fees or a fixed percentage of the order total.
- Establish clear and effective processes for workers to request a record of all data collected and generated about them for the purpose of task allocation, pay, performance management, and other consequential decisions as well as all decisions and other actions taken as a result of such data.
- Adopt policies to protect workers from unfair deactivations and take such proactive measures to protect and promote workers' health and safety.
- Ensure that platform workers are paid a living wage.
- In determining changes to pay structures, consult extensively with workers and their representatives and provide insight into the effect it claims to undertake certain types of edits.
- Establish clear and effective processes for deactivation. Platforms should provide workers with a comprehensive written statement outlining the reasons for deactivation, in an accessible format that workers may access even if their account is suspended or terminated, alongside an explanation of the process through which the worker can appeal the deactivation. Platforms should address any such appeals promptly, and provide adequate compensation for lost wages in the event that the deactivation was in error or inadequately substantiated.

To the International Labor Organization (ILO)

- Collaborate with member states to establish international standards for platform work, encompassing key wages, social security, and labor rights. Ensure that these standards encompass workers who are classed as working platform that address the unique challenges faced by platform workers.
- Initiate capacity building initiatives to support platform workers to advocate for their rights.

Methodology

This report is based on research Human Rights Watch undertook in the United States between May 2020 and September 2021, and subsequent analysis of government data and platform work under international human rights law and standards.

Data on platform workers are scarce. This scarcity stems from the classification of most platform workers as independent contractors, thereby exempting companies from reporting requirements for traditional employees regarding the number of workers engaged and their pay.

The Bureau of Labor Statistics (BLS) tries to capture information on the platform economy through its Contingent Worker Supplement to the Current Population Survey (CPS), which measures workers in alternative work arrangements such as independent contracting, on-call arrangements, and employment arrangements through temporary agencies or contracted firms. However, the survey reflects only the type of work individuals do at their main or sole job and does not capture information about the platform economy. Nonetheless, the survey does provide groups, and academic institutions have collected data through surveys of a larger sample size and national levels. Most extra surveys have focused on California and San Cruzer areas. To date, and to our knowledge, no survey focusing specifically on Texas has been conducted.

To address this gap, Human Rights Watch conducted a survey of 1,0 workers in Texas and interviewed by workers within the state. The survey was intended to capture a representative sample of platform workers in Texas and its findings are indicative but cannot be generalized to all platform workers in the state. Not cast in the sample of platform workers participating in the survey, such as those who are retired, out of living, and minimum wage workers, are not represented in the survey and stories. However, the survey results largely echo accounts from people Human Rights Watch interviewed, as well as results from larger national and state level surveys.

To help evaluate how platforms collect workers' data and use technology, Human Rights Watch additionally interviewed 35 US platform workers outside Texas. Of those, 2 interviews were with platform workers in California the other 2 were with workers in Alabama, Florida, Illinois, Massachusetts, Michigan, North Carolina, Ohio, Wisconsin, Oregon, Washington, and New York.

This testimony is instructive because data collection and algorithmic management practices on platforms, such as pay structures, ratings, and rewards schemes, are largely similar across the US.

Interviews

Human Rights Watch staff conducted in-person research in Austin, Dallas, Houston and San Antonio, Texas, between May and July 2020. Our interview was conducted over email. All other interviews were conducted by telephone or a video conferencing platform. Two interviews were conducted in Spanish by a native speaker fluent in that language and all other interviews were conducted in English.

All workers interviewed provided verbal informed consent to participate. Workers who participated in in-person interviews received a $20 gift card as partial compensation for their time and to cover any expenses they incurred related to the interview. Interviews ranged from 45 minutes to 1 hour and were conducted while workers were not actively engaged on an app or the platforms they work for.

To protect workers' identities, especially in remote expressed fears of retaliation from their current or prospective employers, Human Rights Watch uses pseudonyms for all workers interviewed in this report, unless they had name and an intimidated last name (e.g. Jack M.). All individuals who appear in this report with full last name are identified by their name and consented to the use of their name, willing to have their names and the contents of their interviews published.

Since there are few places where platform workers congregate in person, it is difficult to identify groups of workers. For that reason, many workers Human Rights Watch interviewed were found through snowball sampling. Researchers contacted Rideshare Drivers United, an independent non-profit association of rideshare drivers, and the Gig Workers Collective, which was at the time of research a non-profit group comprising current and former platform workers.

Others responded to a flyer soliciting interviews with platform workers that Human Rights Watch and Gig Workers Collective posted on Craigslist, Facebook, and Reddit. Human Rights Watch also used snowball sampling. Where interviewees introduced Human Rights Watch to their colleagues. Frequently, Human Rights Watch was aware of the identity of the worker in their work organization of the interviewee. The interviews collected by this report include experiences of workers working for a range of platforms across different states and sectors.

For background and contextual information, Human Rights Watch interviewed representatives of labor unions, worker associations, independent associations, and union representatives, journalists, and academic researchers. The report also draws extensively on publicly available secondary information to contextualize findings gathered through interviews, including reports from intergovernmental organizations, government and academic studies, legal proceedings and rulings, books, and civil society and national reporting.

The federal and state governments do not keep comprehensive data on platform workers, therefore Human Rights Watch relied on a range of sources, including surveys conducted by labor organizations, universities, and private corporations. Human Rights Watch also analyzed data from the Bureau of Labor Statistics (BLS) and the US Bureau Labor Statistics Current to analyze public sector to estimate the number of platform workers in Texas, the share of workers who rely on public assistance programs like SNAP or Medicaid, and the loss in Texas state revenue to the State of Employer taxes by digital labor platforms who do not pay unemployment insurance taxes when classifying platform workers as independent contractors.

Survey

To complement the interviews, Human Rights Watch conducted a survey among a sample of 1,0 platform workers in Texas, primarily based in the metropolitan areas of Austin, Dallas, and Houston.

In preparation for the survey, we sought guidance from researchers at the University of California Los Angeles (UCLA), Cornell University, and Columbia University to learn about methodologies that had employed in survey with platform workers in California, New York City, and across the country. We focused on the survey questions that these organizations had used and found comprehensive and their data. The consultations revealed significant challenges in reaching platform workers, citing workers' reluctance in participating due to fear of retaliation and lack of trust in individuals outside their communities. Some surveys relied exclusively on online distribution tools (e.g., Facebook), while others supplemented online outreach with in-person recruitment efforts. All reviewed survey provided compensation to set appropriately for compensating participants (e.g., through a raffle). The table below summarizes the survey and compensation methodology used.

Overview of Consultations on Online Survey

Leading Institution	Survey tool and focus	Compensation used
UCLA under Graham	1,0 app workers in California, focus on Gross hourly wage and Remuneration after expenses	Amazon $10 e-mail vouchers, the gift card provided as an incentive
	1,0 US Transportation network company drivers, focus on Gross hourly wage and Remuneration after expenses	Prize for three 5-minute surveys, $100 each
Cornell University under Prof. Alexandra Mateescu and Prof. Sharon Block	250 app-based gig workers in Washington, focus on Gross hourly wage	Participants upgraded and compensated for their participation in a lottery for a $100 gift card
Columbia University	250 app-based and gig workers, focus on Gross hourly wage	Keyword and Facebook in-app advertisements. Survey was conducted in Spanish and did not offer incentives but followed up on survey

Informed by consultations and the challenges identified in reaching platform workers, we designed a survey for a survey methodology centered on participatory worker outreach. This approach would bring platform workers to actively promote and encourage other workers to participate in the survey.

To implement this methodology, Human Rights Watch collaborated with Rideshare Drivers United (RDU), an independent non-profit association of rideshare drivers based in California with members across the country.

RDU was primarily responsible for recruiting survey participants by letting our members know about the survey and encouraging them to participate in the survey social media and in person. The local platform workers helped spread the word by sharing the survey with their friends and family. Human Rights Watch provided RDU with comprehensive survey materials, such as a paper version (rideshare drivers need for customers, (e.g., on airport), 40 surveys were completed through a well-known (Facebook), Cornell University used the opposite approach, Human Rights Watch (US to partnership with the Workers Justice Project, a New York-based worker group that mobilized platform workers in their communities.

There were two criteria for taking the survey: the respondent had to be over the age of 18 and had to have worked for at least one month for a ride-share or delivery or rideshare app in Texas. Human Rights Watch excluded responses of the survey if the respondent did not meet the criteria or did not complete the survey. If the respondent reported that they had never worked for an app or worked less than one month for an app, if the respondent failed certain tests for reliability embedded into the questionnaire, if more than one response was associated with a worker's contact information, or if the geographic information obtained did not match zip codes in Texas.

The resulting sampling methodology was a combination of purposive, convenience, and snowball sampling methods. The purposive aspect ensured that respondents were platform workers during the aforementioned criteria. Convenience sampling was used because the survey was distributed to rideshare or delivery driver social groups, and participants. Convenience played a role in recruitment, with organizers sending respondents at various crossroads or online, including Facebook groups, and the combination of the respondents being a platform worker and fulfilling the two criteria. The snowball element involved workers encouraging peers to participate in the survey. While the resulting sample is not representative, it is indicative of the working conditions of respondents who work for apps and services to rideshare the information provided by the survey.

Data collection took place between December 2020 and March 2021 using the survey platform Qualtrics. The survey questionnaire was translated into English and Spanish. A total of 1,0 were opened the survey, and 40 respondents did not give consent. Closing pages to respondents were required the required criteria and exclusion questions, as well as screening questions, left no under 18 or survey respondents, of which 1,0 were completed in English and 1,0 in Spanish. On average, respondents took 20 minutes to complete the survey. The survey was distributed with 1,0 using RDU, the survey conducted by the Workers Justice Project, a New York-based worker group that mobilized platform workers in their communities.

Human Rights Watch conducted the analysis of the survey results. The survey instrument and the Rice to record survey participants are available on the Human Rights Watch website.

Digital Labor Platforms Studied

Human Rights Watch interviewed workers who worked for and provided research with digital labor platforms Instacart, Amazon Flex, Lyft, Uber, Doordash, Grubhub, Postmates, Shipt, Rover, Amazon Mechanical Turk, Clickworker, Appen, Figure Eight, Lionbridge, Cloudwalker, Cloudwalker, Cloudwalker

agree that there are crises where restraint during the Covid-19 pandemic. The right-angle related to the impact of platforms on workers, see Amazon Fire tablet by Amazon.com, Inc.; ZenBook Duo, ZenBook Duo, Zenfone 3S R Grocery Company), Instacart (Magnitude Inc.), Lyft (Lyft, Inc.), Postmates (Postmates, Inc.), Uber Technologies, Inc., and Deliveroo (Uber Technologies, Inc.).

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Focus on Platform Workers' Pay in Texas

Texas was selected as the primary research location for studying platform workers' pay for several reasons. Texas is the second most populous U.S. state, with a long, 1.05-mile (1.69-kilometer) coastline.[1] The state also has some of the largest cities in the United States, including Houston, Dallas, and Austin, with among the 10 most populous cities in the U.S.[2]

Most studies of working conditions in the digital platform economy have focused national coverage, or focused on high-profile cities in coastal states, such as New York City, Los Angeles, San Francisco, Seattle, and Washington, DC.[3] Comparatively few researchers have studied the participation of platform work in southern states, and Human Rights Watch is not aware of any comprehensive study or survey that documents the conditions of platform workers in Texas.

Texas has some of the lowest indicators for adequate labor protections among US states. Federal labor laws in North Dakota, which contains smaller efforts to protect, support, and enumerate workers, ranks Texas 40th among 51 US states and territories, placing it in the southern region.[4]

The state's performance ranks particularly in terms of compensation and workplace conditions. Texas maintains one of the lowest minimum wage rates, currently stagnant at the federal level of $7.25.[5] To pay this rate compliantly, employers must pay $2.13 per hour for tipped employees, which the Massachusetts Institute of Technology estimated to be an income level that is one-half of living for a family of four with two children and one working adult (living wage).[6] Conditions in Texas cement as the minimum wage drops the 25th state standard.[7] Texas also lacks provisions for mandatory paid leave.

Even though these wages are low and protections are few, platform workers remain employees under the law. Digital platforms studied in this report generally classify platform workers as independent contractors. As a result, platform workers are not entitled to the minimum wage, workers' compensation, anti-discrimination protections, or other benefits. Instead, platform workers are contracted their payments from platform workers in a pay-to-play format, unemployment agency-contracted platform companies hold the state's unemployment insurance requirements, effectively classifying all platform workers as independent contractors.[8]

Texas is also one of at most[9] states so called Right to Work laws, which are designed to undermine freedom of association, and a vestige of the Jim Crow era that permit employers to opt out of paying union dues, hurting workers' unions and lower wages.[10]

Though our research focuses on workers throughout the state, Texas is a geographically, economically, and demographically diverse state, and the experiences of the app workers we identified cannot represent all app workers.

Outreach to Companies and Government Officials

In March 2019, Human Rights Watch wrote letters to the seven platform companies listed above. Uber and Uber Eats are part of Uber Technologies, sharing preliminary findings from this research and requesting information and clarifications regarding their practices. We received a written response from Uber Technologies, which we incorporated into our analysis and findings. In the letters, we requested information about workers in Texas, total number of workers engaged with the platforms and demographic information, pay and bonus schemes (median hourly pay before and after tips, total compensation, and the pay implications of drivers' behavior and performance), ratings and deactivations, and other information about workers' working conditions and financial incentives, insurance, and health schemes, including in the event of workplace injuries. The platforms company provided any of the requested data.

In October 2019, Human Rights Watch wrote letters to Texas and federal officials, including the Texas Workforce Commission and the Texas Legislature, requesting information and clarifications.

In March 2019, Human Rights Watch wrote to each of the seven companies with further questions. In response, Lyft said "App based work problem solution of Lyft" and Postmates said "Postmates is committed to providing a safe place for our courier, customers, or obligations. It allows them to work around their many real and unpredictable commitments and their busy schedules in ways that traditional a 9 jobs don't provide." Lyft also shared policy documents with Human Rights Watch. Instacart sent with Human Rights Watch to discuss the report but declined to provide any written response to the preliminary findings. Uber Eats and Deliveroo and responses are available from the Human Rights Watch website.

In March 2019, Human Rights Watch wrote letters to government officials within the US Department of Labor, the Federal Trade Commission, and the Texas Workforce Commission, to share the findings of this report. As of the time of publication, the Department of Labor had acknowledged receipt, but did not provide a comment on our findings. None of the other agencies had responded.

Background

Digital platform work is operating across multiple sectors of the economy, from ride-hailing, food delivery, and caregiving, to research, content moderation, and more. Platform work is growing rapidly in the United States. The Pew Research International Labor Organization (ILO) identified a rise of digital platform work worldwide, a nearly tenfold jump from the 1st operating in 2010.[11] The majority of platform companies (70 percent) are situated in four countries. Within the 21st countries, platforms are largely concentrated in the United States: 50 percent of platforms are based in the United States.[12] Platforms operating in platform mode for the first time, or platform-only, or digital platforms, a roughly tenfold increase within the previous decade.[13]

Both ride-hailing and delivery platforms have proclaimed themselves as a convenient way of getting rides, ordering meals, and running errands, and their reliance on AI and other digital technologies as a means of better means of generating supply and demand and managing labor costs.[14] The ILO has observed that these platforms generally begin "traditional capital assets, such as cars, better or worthwhile" in favor of investments in technology:

> [P]latforms tend to operate manual or digital information and are overwhelmingly dependent on data, skills, ideas and physical assets provided by their users (both clients and workers). For example, Uber does not hardly invest in cars, but (as of 2015) it had 1 million drivers, and Airbnb, the world's largest supranational space, holds a mere set of mattresses. Its 1.6 million employees and 1 million drivers, what either own or lease cars, with the majority of them being labeled as self-employed or "driver-partners". Uber subcontracts to non-employees, such as "Partner" vehicle-for-hire companies, by matching customers with drivers, in exchange for the methods of users, drivers and commissions, data and the brand.[15]

The business model requires vast computational resources and expansive access to data, and platforms have invested in cloud and other technical infrastructure and schemes.[16] Because of the reliance on digital technology, platform-based businesses are hardly new, but the model has grown exponentially in multiple ways as demand was developed by Japanese consumer Tsutaya in the early 2000s to minimum manufacturing delays.[17] Paying platform workers pay gig tasks back to an only 4th century labor practice that required management, where, into one pool per price rather than by the hour or how the personal manufacturer, and the platform company, "Tsutaya" or "Uber" or "Lyft" or "Postmates" or "Deliveroo" hallmark of the digital platform economy. Uber has pioneered the model.[18]

While platforms ceed their commitment to innovation, their emission use of technology has failed to remove harmful concerns about the impact of their underlying business on workers, consumers, and the environment. Like the tech industry, ride-hailing platforms have attracted criticism for increasing congestion, pollution, and risks to public safety. A study in Boston and by the Greenlined Institute found that riding-on-demand platforms increase congestion about a percent greater emissions than a person car trip.[19] A 2019 study by researchers at the University of California, Riverside, and the University of California, Irvine, predicting that prices per trip and responsibility for the environment would increase congestion, traffic, noise, and the likelihood of car accidents.[20] Researchers partially attribute these impacts to platforms's business to "bandwhoring" the time that drivers spend on the road without passengers in the vehicle (for example, while traveling to the next pickup or looking for the next ride).

The ways that platforms display technology, however, has shielded many of their practices from scrutiny and accountability. Non-obsolete platforms profile consumers to algorithmically price fees, for example, to largely unknown ways that are hidden from the public. Platforms have also implemented surge pricing programs, for example, for Google Maps, which encourages drivers to congregate in areas where fares in Chicago found an unannounced date that the city had compelled platforms to disclose. Where you study of the data found that Chicago neighborhoods "with larger non-white populations, higher poverty levels, younger residents, and more renters" received fewer ride-hailing pickups than other areas of the city.[21] Although these findings indicate consumer discrimination is a concern, it is impossible to explore or audit this analysis without access to similar data in other locations. Human Rights Watch has not come across any study of whether dynamic pricing in the food and grocery delivery platforms has discriminatory effects.

This report examines a key technological development that has marked the rise of suburban and delivery platforms, and broad months of the digital platform economy: the use of AI and other data-driven technologies to manage and control workers, and to make decisions affecting workers and consumers. Digital platforms are implicated in labor rights abuses, including discrimination, and in the crises for these abuses. Pending back the legacy of technological complacency and obfuscation, this report also discusses the labor practices of digital platforms and harking the interconnected crises of informal work and economic inequality.

Digital Platform Work in the United States

The United States is one of the largest markets for digital labor. In 2019, a national and representative Pew Research Center survey found that 10 percent of US adults have worked for a digital platform that contains a "gig" component, and 4 percent likely that any other social or ethnic group in them worked for those platforms in the past. Black and Latinx households are twice as more likely to have done so than other adults.[22]

Ride-hailing and delivery services are the most popular and visible forms of platform work. Seven percent of Pew respondents have worked for food delivery platforms, and 5 percent have worked for ride-hailing platforms, and 2 percent delivery platforms.[23] But platform work is gaining a foothold in other industries: US hospitals and healthcare facilities, for example, are increasingly reliant on app-based nursing platforms to meet staffing shortfalls,[24] Hospitals reported that they have degraded working conditions for nurses, and exposed patients to accidents, medication errors, and injuries.[25]

In recent years, several platform companies have experienced significant market share and revenue growth. They capped 41 percent of rideshare sales in the US in early 2019, the market capitalization totals at $39.6 billion as of April 2019, and Uber's revenue grew by 14 percent in 2018.[26] Uber's revenue growth slowed from the previous year,[27] in the company's fourth quarter, it was reported, CEO Dara Khosrowshahi stated: "Our ended 2019 with our strongest quarter ever [...] We meet every with time maintaining and improving our platform, and we appreciate our long-term strength."[28] Similarly, GPS Freelancer Mechanics Kojo Kwarteng said that "Uber's revenue growth slowed in the last quarter of 2019 Rankings Rates than the high end of our guidance, and we noticed a year-long, exceeding our three year outlook [...] We believe we remain underwritten despite these strong fundamentals, and plan to be active and opportunistic in the market."[29]

Lyft, the second largest rideshare provider in the US, accounted for 29 percent of all rides,[30] as of April 2019, Lyft's market capitalization reached $21 billion,[31] its 2019 Lyft revenue $2.8 billion in revenue, up a percent from the previous year,[32] Lyft reported closing the fourth quarter of 2019 with "record Gross Bookings, revenue, and adjusted EBITDA" and "first full year of GAAP profitability, and second full year of adjusted EBITDA."[33]

In the realm of food delivery, DoorDash dominates, with 51 percent of retail deliveries in the US as of March 2019, followed by Uber Eats with 25 percent and Grubhub with 8 percent.[34] As of April 2019, DoorDash had a market capitalization of $16.5 billion, and reached $1.1 billion in revenue, up 3.6 expected 2.6 million in net profit.[35]

People more vulnerable to income insecurity are more likely to sign up for platform work. The Pew survey found that 4 percent of people with lower incomes have worked for platforms, compared to 2 percent of people with middle incomes and 1 percent with upper incomes.[36] They are also more likely to rely on platform work as their main source of income: 4 percent of workers with lower incomes told Pew that this was their main job over the last 12 months, compared to 2 percent of all workers.[37]

Human Rights Watch's survey in Texas focused on rideshare drivers and food delivery workers, because these are the most visible and popular platform work types of platform workers. Reports which made up the largest share of Human Rights Watch's survey respondents: 52 percent, about capitulation in the state's dispute or Latino population.[38] The respondents were generally older than Pew's more than half were between 50 and up, followed by workers between 40 and 64, and workers between 18 and up. Eighty-six workers who identified as male took the survey, the remaining as identified as women.

Responses to Human Rights Watch's survey were consistent with the Pew survey, in that the large majority of its respondents are on lower incomes, among the 52 percent of respondents who said they earned less than $25,000 annually, and the survey sample totaling the last year, which indicate and they struggled the most. Of those earlier, about a third struggled with covering their food costs almost every month, which nearly another third struggled for one to three months.

Many platform workers are drawn to their jobs because they believe it offers them more flexibility than other types of work. According to Pew's survey, a greater of current or recent platform workers said that "being able to control their own schedule" was a major reason for taking on platform work, up 10 percent and that "working to be their own boss" was a major reason,[39] Human Rights Watch's survey found that workers were motivated by the flexibility platform work offers, "the underlying problem of wage theft underscores the power platforms have the narrative of flexible work: on their platforms, they claim, workers get to set their own work hours, be their own boss, and make a living on their terms."[40]

Employment Classification

Platforms invoke this narrative to classify platform workers as independent contractors rather than employees, under federal and state labor law.[41] Under these laws, independent contractors are not entitled to the minimum wage, overtime pay, unemployment insurance, and anti-discrimination protections.[42] Some fault arises associated with employee status, including standby time, limitations, rest breaks, and vacation, are required by independent contractors.[43] "Drivers describe the cost of being injured on the job, and all work-related expenses.

While employment classification standards are in flux and vary by jurisdiction, Human Rights Watch's research and interviews underscore that platform workers, Labor law experts have identified three main tests of employment classification in the US. The common law standard, which establishes a 'a factor test of whether the employer has control over the manner and means by which the worker's work, determines whether or not a worker is classified as an employee or independent contractor. Some state and federal statutes, including protection under federal law, and workers' compensation for the benefit of work-related injuries or illness in many states.[44] The economic realities test, which probes the degree of managerial control and entrepreneurial freedom afforded to the employment relationship, the skill and initiative required of the worker, and the permanency of the relationship between the worker and the employer, protections, bonds and a fixed, most recent survey, benefits and a fixed rate. The ABC test presumes employees status unless the worker is free from employer control and direction, performs work outside the usual course of the employer's business, and is customarily engaged in an independent trade, occupation, profession, or business. This test, which imposes the most stringent criteria for classifying workers as independent contractors, discriminate rigidly for independent contractor status, and is the basis for California's landmark AB5 standard which limits the determining eligibility for independent contractor status.

This complex patchwork of classification rules has made it difficult to hold employers accountable for misclassification practices that deny labor rights abusers. In the early 1980s, nearly comparison begins to minimum wage to contractors in and outside the US, in a bid to cut labor costs and improve profitability.[45] They contracted among, full-time jobs were "secure with, temporary positions and other contingent" forms of employment, often performed by workers classified as independent contractors.[46] The form of contracting out to independent contractors, which "has been used to circumvent hard-won rights of work and workers," and incentivized contractors firms to shift labor, from 1983. Well, who served as the Administrator of the Wage and Hour Division of the US Department of Labor[47] from 2009 to 2012, described discovering "repeated cases" of such firms services violations of employment laws, including "the wage and hour violations."[48]

Drivers and food delivery workers are employees, not independent contractors, and such classification is a fraud. Platform companies have long denied that workers are employees, and have sought to avoid the consequences of such classification. The companies have deployed a dizzy array of tactics, including lobbying, litigation, and ballot initiatives, to avoid the consequences of such classification. The companies have also sought to avoid the consequences of such classification by shifting the burden of proof to workers, and by asserting that workers are independent contractors.[49] Platform companies have also sought to avoid the consequences of such classification by shifting the burden of proof to workers, and by asserting that workers are independent contractors.[50] Platform companies have also sought to avoid the consequences of such classification by shifting the burden of proof to workers, and by asserting that workers are independent contractors.[51] Platform companies have also sought to avoid the consequences of such classification by shifting the burden of proof to workers, and by asserting that workers are independent contractors.[52] Platform companies have also sought to avoid the consequences of such classification by shifting the burden of proof to workers, and by asserting that workers are independent contractors.[53] Platform companies have also sought to avoid 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Location Data

The collection of geolocation data is central to the functionality of most ride-hailing and delivery apps, and the majority of platforms compile extensive records about their workers' locations and movements, both when they are working and sometimes when they are not working.

Uber, Lyft, Instacart, DoorDash, and Bright specify that they collect precise location data about workers, such as their precise latitude and longitude, even when they are actively engaged with the app (e.g., on screen while looking for or completing a ride or delivery, or having it run in the background (e.g., when they may not be working but have not switched off the app).[29] Bright also activates location tracking when workers are "not using the app but have enabled location services on their mobile device" (which enables it approximating[30] in order to dispatch geographically "relevant offers for potential deliveries."[31] Flexon and Amazon Flex collect precise location data, but they specify that when data collection starts and stops.[32]

All screen companies say that they use geolocation data to track workers' progress on rides or deliveries and to detect fraudulent activity. Bright, Instacart, and Lyft specify that they use this data to investigate whether someone other than the worker is using their account. Uber says that it uses location data gleaned from Android devices to detect the type of road, but only on the UK.

Uber, Lyft, Instacart, DoorDash and Bright also use this information to track workers with rides and deliveries. Uber adds that it uses the information to customize the amount it charges customers and pay workers for each ride or delivery. Lyft, Bright and Uber also use this information to ensure "accurate payment" for rides or deliveries.

Behavioral Data

Many platforms also collect and analyze vast amounts of information about how workers behave when they are on the clock.

DoorDash provides one of the most precise accounts of how the performance of workers is tracked and monitored.[33] Whenever a Dasher tap some their app, the company records the time, the Dasher's precise location, and the type of action they performed. Lyft collects data on how long they wait, how long they work, and every ride they click. From the moment a Dasher accepts a delivery order to the time they complete it, nearly every minute is tracked what course they travel, when they pick up an order and drop it off, the order amount and tips received, and the overall time the delivery takes. Each time a worker declines an order, it is also logged and tracked. DoorDash uses this information to generate an supplement performance "scores" for workers based on their acceptance rate, completion rate, customer rating, and the number of deliveries they make over time.[34]

Similarly, Uber, Lyft, Instacart, and Bright collect and analyze extensive behavioral data when and how workers engage their apps, the times they deliveries they accept, cancel, and reject, and their progress throughout every ride or delivery.[35]

Amazon Flex, which requires workers to sign up for delivery shifts rather than specific deliveries, collects data that meticulously tracks their progress throughout a shift. From the time they report to their assigned warehouse, to when they pick up parcels, begin a delivery route, return from the route, and sign off undelivered parcels, Amazon workers' behavior can be analyzed in time, date, and location. Amazon Flex also monitors whether workers follow the routes they are assigned to, and notes if they are using "driver assistance technologies" (such as navigation maps).[36]

While tracking workers in this way allows employers and customers insight into the behavior of their workers, it also enables employers to discipline and terminate rider workers, who may be flagged or penalized for not completing tasks within a rigid timeframe, where there are no procedures in place to request the reasonable accommodations for their disability or other needs.[37]

Additionally, platforms monitor specific aspects of workers' behavior that are relevant to the nature of the work performed. Flexon, for example, collects information about vehicle speeds and how drivers brake and accelerate on roads to analyze whether they are driving safely.[38] Instacart and Uber Carsharing, the company's grocery delivery service, measures the speed at which workers shop for groceries and deliver them to customers, and monitors and analyzes about whether or how their workers affected the shopping of the ordering requests.[39] Uber has also disclosed that it analyzes both driver and rider data, such as trip history and "expected incident rates," to "provide safety-related prompts ... that may result in increased risk of crashes."[40]

Communications

Workers' communications are also closely monitored. Lyft notifies drivers and riders that their calls will be recorded before the recording begins,[41] DoorDash uses an undisclosed third party to monitor and analyze chat and text messages between Dashers and customers for fraud, violations of the company's terms of service, and "unprofessional conduct."[42] Bright, Instacart, and Amazon Flex record calls, email exchanges and in-app communications between dispatchers and customers, as well as shoppers and the company.[43] Instacart does not disclose whether it monitors shoppers' communications with customers, but it notes in its privacy policy and independent contractor agreement notify shoppers that it monitors their "activity on the Instacart Platform" and "communications and interactions between Shoppers and Instacart, including phone calls, text messages and chats."[44] Amazon notes in MTurk on May 20, 2019, to clarify that "this type of data collection is used for incident investigation and has this deterrent policies that apply."[45]

Biometric Data

All the platforms analyzed in this report collect personally identifiable information such as workers' names, phone numbers, and email addresses as well as certain biometric data. Uber, Lyft, Bright, Instacart, DoorDash, and Amazon Flex outlined their workers' agreed with a type of facial recognition technology known as facial verification to check whether the person signing on to the platform matches the identity of the worker on file.[46] This technology requires the collection and analysis of biometric data, including photos of the worker and data authenticated by the worker through the app.

Relying on facial recognition technology to verify identity increases the risk of discrimination in matters of credit, rental or other identity, criminal, and people with disabilities, potentially putting them at risk of losing earnings or even wrongful termination.[47] In 2019, the National Institute for Science and Technology, a federal government laboratory, found that commercially available facial verification algorithm produce more false negatives for darker skinned people and women than for lighter skinned people and men.[48] Other surprises include that the algorithm produced false positives for people who were neither men nor women.[49] Lyft has also warned that "[w]hen image quality degrades, false negatives are expected to increase", that when workers try to complete facial verification decide driving or to pass lighting,[50] women tend to have Human Rights Watch on May 12, 2021, to clarify that "[i]n Amazon Flex, delivery drivers are not terminated using automated tools. There is no human involved."

Workers from Instacart and Uber have shared on social media anecdotal accounts that they have been transparent that one of their accounts is permanently disconnected after they failed the platform's facial verification checks.[51] In the United Kingdom, the Independent Workers' Union of Great Britain (IWGB) has documented at least 35 Uber drivers who have been deactivated from the platform apparently due to errors with the company's facial verification tool. Uber sources have claimed that the company's facial verification tool "[illegible] the accuracy of the classification."[52]

Opacity

Although platforms harvest vast amounts of data about platform workers, they disclose very little to workers, regulators, and the public about how they use these data to set pay, track and monitor performance, and influence working conditions.

Workers cannot set or negotiate their rates for giving a ride or dropping and delivering a package, because platforms automatically set and adjust rates in real-time according to their algorithms. Workers can't predict, understand, or even challenging algorithms. A 2021 Pew Research survey found that more than half of the platform workers have a poor understanding of how digital platform algorithms determine how they are paid.[53]

Platforms relying on black box algorithms to calculate how pay (i.e., pay before tips and applicable promotions or bonuses) include:

- **Lyft**, which rolled out a new pay structure in February 2021 known as "Prime Time" that uses algorithms to calculate pay based on a proprietary assessment of factors such as estimated length and destination of the trip, distance to pickup, and real-time demand at the destination.[54] This dynamic, real-time formula was a major departure from its longstanding method of calculating fares based on fixed time and distance rates and "Prime Time" has been criticized for "[illegible] the ability of drivers to provide the full list of factors that guide the algorithm's calculation."[55]
- **Lyft**, which has since 2021 gradually rolled out a similar model known as "Upfront Pay" to calculate drivers' earnings, relying on time, distance, and "[illegible] pickup, real-time demand for rides at the driver's location, and other unspecified" market factors.[56] Lyft dedicated a section of Human Rights Watch with the full list of factors that guide their algorithm's pay calculations.[57]
- **Instacart**, which collects the amount it pays shoppers for each "[illegible]" the company's terms for an order or group of orders, based on the "size and complexity" of the orders in each batch.[58] This pay model takes into account factors such as the "[illegible] the number of items, the weight of the purchase of those groceries, travel time" to its auction what other factors guide the company's assessment of "size and complexity." When the company mentioned these new pay models on July 20, 2019, it owned shoppers that its algorithms pay calculations will now fall below a minimum hour pay of $ 10 per hour.[59] Instacart's minimum hourly pay rate was $ 10 per hour in 2019 but its pay batch minimum established in 2020.[60] Workers sued, Instacart would pay a minimum of $ 10 in the pay order (depending on time and place), as well as a fee for each process item (usually around $ 2).[61]
- **Shipt**, which has changed pay to its algorithm's estimation of the time and effort it would require to ship and deliver the order. Factors influencing pay include "the size of the store, driving time, the likelihood of [order] stacking, and the time it takes to shop for and deliver the order."[62] Shipt's calculations will not fall below a minimum hour pay of $ 10 per hour.[63] This figure, however, compensates compensation for both the worker's labor as well as their work expenses, such as gas and car maintenance. Shipt's compensation formula was for some straightforward before 2021. It pegged a flat fee each order plus a tiered "[illegible] based on a percentage of the total order amount."
- **DoorDash**, which offer workers the ability to toggle between two payment options: "Dash pay and Offer" mode calculates base pay on a pay order basis, based on factors such as estimated time and distance, and "Dash pay" mode. The company declined to provide additional information about how it measures "desirability." The "Dash by Time" mode, which was established in June 2020, provides workers a fixed hourly pay rate that varies according to locations.[64] The pay rate only covers active time (meaning the time between when a worker accepts an order and when they complete the order) and between orders.[65] In "Dash pay" mode, workers have the option to opt into the orders they pick up, so they are permitted to decline only one offer per hour.[66]
- **Favor**, The hourly pay for each deliveries, known as a "Boost," starts at $ 11 and "can increase the different types of Boosts." The company Human Rights Watch on July 20, 2021.

Amazon Flex is the outlier among these companies. It pays Flex drivers a flat hourly rate ranging from $18 to $25 depending on location,[67] it is unclear if or how Amazon uses the data it collects on workers to set these rates.

Opaque pay algorithms make it harder for workers to assess how their compensation is measured, whether particular jobs are worth their time and effort, and the factors responsible for changes to their pay. Uber's recent revised pay model, for example, has left many workers "a bit behind" because "[illegible] the way they are supposed to." Workers have complained that they can't predict how long they will have to work to earn a living wage, and that they can't understand how they earn bonuses or why they are paid less on some days than others.[68] Lyft's Prime Time has left workers "[illegible] the ability of drivers to provide the full list of factors that guide the algorithm's calculation." Lyft's Upfront Pay has left workers "[illegible] the ability of drivers to provide the full list of factors that guide the algorithm's calculation." Instacart's pay structure has left workers "[illegible] the ability of drivers to provide the full list of factors that guide the algorithm's calculation." Shipt's pay structure has left workers "[illegible] the ability of drivers to provide the full list of factors that guide the algorithm's calculation." DoorDash's pay structure has left workers "[illegible] the ability of drivers to provide the full list of factors that guide the algorithm's calculation." Favor's pay structure has left workers "[illegible] the ability of drivers to provide the full list of factors that guide the algorithm's calculation." Amazon Flex

Pay Transparency Laws Will Change Pay Practices

Pay transparency laws are a relatively new phenomenon. Minnesota's "Uniform Pay Practices" law, for instance, was passed in 2014 and is the first state law of its kind. Although it has not been in effect for very long, it has already been amended twice. Minnesota's amendments have made it more difficult for employers to claim that employees who work remotely are not subject to the state's pay transparency laws. Minnesota's amendments also have made it more difficult for employers to claim that employees who are paid on a commission basis

have colonialized autonomy and control over the time at issue. Any considerations to the contrary, the Australian decision ought to be responding to a call, the frequency of such calls, and the latitude to decline a specific request should be left to the employer and employee. Thus, the Australian decision in Quadrant Dale v Qube Ports at bottom is wrong since "[t]he employer and employee are the only parties with the information that the employee cannot effectively use the call time his or her own purposes, the so call waiting time would constitute 'hours worked.'"[17]

No data, platforms do not compensate workers for the time they spend waiting between rides or deliveries. A 2021 survey of Uber drivers in Seattle found that wages stood flatly for ride hailing platforms found that drivers, on average, spend 40% up to 50 percent of their work time with passengers in the car.[18] Moreover, a 2019 study suggests that this figure is 41 percent.[19] In Seattle, it is estimated that Uber drivers spend 30 percent of their time waiting for a passenger to enter the car and "[i]n New York, drivers spend 40 percent of their time and gets 60 percent."[20] In Chicago, drivers have "[a]ccounted for the 50 percent of their working hours."[21]

Platform-backed minimum wage bills in California and Washington only provide compensation for engaged time, not waiting time.[22] If platform workers were classified as employees, however, they would be entitled to compensation for waiting time under the Fair Labor Standards Act (FLSA). In Avtovo v. Mortvil, et al., the 11th Circuit Court found that workers should be compensated for all of the time they are on the clock, including time spent waiting for work. The Court explained:

> Of course, an employee, if he chooses, may bet a mate to do nothing, or to do nothing but wait for something to happen. Refraining from other activity often is a factor of more or less value to service, and allowance pay is part of its employment as a stand by or a fireman. Ordinarily, however, the hours he may work are not such, . . . the think the Labor Standards Act does not include as working time periods contracted for and spent on duty in the circumstances disclosed here merely because the employee may at any time stop leisure by an the employees' hands and because the employer may, if it chooses, call on him to perform some duty. Employment and abstinence incident to it were separable.[23]

Beyond Gamely Pay: The Impact of Discounting Schedules and Wages on Financial Security

Long-term unemployment is a significant reality in modern economies and Gig Platforms, which also affect the financial security, and thus the rights, of platform workers, particularly those who are classified as independent contractors. Gig platforms have developed a complex system of discounts and fees that affect the financial security of workers and their families. Gig platforms have developed a complex system of discounts and fees that affect the financial security of workers and their families.

For Gabriel M., a grocery delivery worker in Houston, the availability of gigs plummeted in the first quarter of 2020 due to the pandemic. Gabriel M. was able to earn enough to pay his rent and feed his family by working 60 hours a week. However, after the pandemic hit, he was lucky to earn enough, on a good week, for half the weekly rent remuneration drop from $75 to $30.[24]

Brandon G. shared similar frustrations about the monthly earnings he received from his work with Uber. Brandon G. said that, after Uber's fees and deductions, his gas bill alone ate up his earnings. Brandon G. relies on his platform work, and his earnings, to support his family of four. Brandon G. said that, after Uber's fees, he barely earns enough to meet all needs. Gabriel M. also has to supplement his income with other jobs, and he also has a family to support.

Over the course of a year and a half, working for Instacart in Houston, Gabriel M. noticed disappointed delivery, and tip, rates. Instacart offers independent contractors (including Gabriel) gig, from Instacart, and tips. But, Gabriel M. noticed that, over the course of a year and a half, the amount of tips he received from customers decreased. Brandon G. noticed a similar, but, distinct, trend. Brandon G. noticed that, while the amount he earned from Uber did not decrease, the amount he earned from tips did decrease. Brandon G. noticed that, while the amount he earned from Uber did not decrease, the amount he earned from tips did decrease. Gabriel M. and Brandon G. noticed that, while the amount he earned from Uber did not decrease, the amount he earned from tips did decrease. Gabriel M. and Brandon G. noticed that, while the amount he earned from Uber did not decrease, the amount he earned from tips did decrease.

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Administrative Hurdles

A second barrier preventing platform workers from accessing social security is the presence of administrative hurdles in programs for which they are eligible. The Social Security program for older age covers both employees and independent contractors, provided they make the necessary contributions, known as payroll taxes, in the US. Traditional employees make their share of contributions through automatic payroll deductions, with employers covering half the contribution. In contrast, platform workers face a more complex process. They are responsible for both the employee and employer shares of the Social Security contribution.

Platform workers may also qualify for more federal social assistance programs, such as the Supplemental Nutritional Assistance Program (formerly Food Stamps), if their income falls below a specified threshold. These programs are typically financed through general revenue and provided independent of employment status.

Moreover, even though platform workers can access programs like TANF, proving eligibility can be difficult with fluctuating incomes. For TANF eligibility, a household's income should be at or below 50 percent of the federal poverty line, which was $10,172 for a family of four in 2021.[109] Applicants are required to submit documentation of household earnings, usually covering four weeks of pay stubs. For platform workers, this requirement can be burdensome, particularly with regular working hours and a commission pay schedule, platform workers often experience irregular working hours, sporadic paychecks, and limited documentation of their earnings can face significant hurdles in the process.

Most platform workers do not receive pay stubs, and their hours per week may not accurately capture the extent of their employment. While platforms may offer digital records of payments, the only formal documentation of income is the Form 1099-nec or 1099-k, which provides a fragmented picture of earnings that may begin necessitate proof of work-related expenses, adding an extra administrative burden.[110]

Survey Findings on Implications for the Rights to Work and Diversity

Many of the respondents to Kantar Public's survey on Diversity perceives Uber's treatment of its independent contractors (drivers) as fairness and equitable. Respondents also perceived that Uber treats its independent contractors (drivers) the same as its employees (drivers) in terms of:

- Respondents are confident in saying that "I can find the processes left the rights of an independent contractor (driver) to work and diversity." Respondents are also in agreement with the statement "I can find the processes left the rights of an independent contractor (driver) to work and diversity." The strongest statement where respondents are in agreement is

The Public Cost of Unmet Social Security Contributions

In the US, the legal Security Act and the Federal Insurance Contributions Act (FICA) mandates that employers contribute to the federally mandated social security programs—Social Security, Medicare, and unemployment—on so-called payroll taxes. By classifying platform workers as independent contractors, companies avoid these contributions that are required of other employers. Instead, workers must cover both the employer and employee share of Social Security and Medicare contributions. They are also ineligible for unemployment benefits, which are funded by employer payroll contributions. Workers are also not covered that state-mandated benefits collect if workers were properly classified.

A social security system that covers only specific categories of workers and excludes some corporations from contributing undermines risk pooling. Risk pooling in social security involves spreading financial risks among a large number of participants, ensuring that the cost of benefits is shared by everyone, thereby reducing the burden on any single individual. When coverage is limited to specific workers categories and not all corporations contribute, the pool of contributors shrinks, weakening the system's ability to distribute risk effectively and compromise the system's stability and sustainability.

While platforms from gig to cloud can advantage by avoiding social security contributions and not having to pay employers during down times, workers face a double risk by missing out on benefits such as unemployment benefits and paid sick leave. The cost is then transferred to the public and other taxpayers, workers end up relying on non-contributory programs such as food stamps or Medicaid instead of insurance partly paid for by employers. As a result, taxpayers and non-budgets are essentially subsidizing platform companies.

Several states have challenging these practices due to the financial impact on their public funds. For example, a 2021 audit by New Jersey's Department of Labor and Workforce Development estimated that misclassification of independent contractors rather than employees, cheated New Jersey's public fund of unemployment and disability insurance from 2014 to 2018. The state also demanded $70 million in interest.[96] In 2021, Uber settled by paying to pay New Jersey $100 million to back taxes, less than a fifth of what the audit had assessed as the company's liability.[97]

Similarly, the New York State Department of Labor (NYSDOL) maintains that rideshare drivers and couriers are employees for purposes of unemployment insurance. In a 2023 settlement between the NYSDOL and Uber, the parties agreed that Uber owed $45 million in back unemployment insurance taxes, should receive from. It mandated that Uber stop making regular payments to the state's unemployment insurance program as well as retroactive payments dating back through 2013.[98] The governor's office did not disclose the total amount of the settlement, citing confidentiality laws on unemployment insurance data.[99]

The University of California, Berkeley Labor Center estimates that if Uber and Lyft had classified workers as employees, the companies would owe $4.9 billion in California's Unemployment Insurance (UI) fund for the year 2019.[100]

To assess the impactful of this issue in Texas, Human Rights Watch conducted an analysis using both estimates from the American Community Survey (ACS) and tax filings based data from the Census Bureau's Nonemployer Statistics (NES), following methodologies developed by the US Bureau Labor Center and the Center for New York City Affairs.

In Texas, the ACS suggests that as low as 61% of wages are given to platform workers while the US tax data set or aggregates, Texas employers would pay less by amounts ranging from approximately 1% to 3% of payroll, or roughly $1,000 to $3,000 per worker, which is not insignificant given that wages are eligible for payroll taxes only up to $168,600 annually.

Companies that classify their platform workers as independent contractors do not contribute to social unemployment insurance funds across all 50 states, meaning workers receive no unemployment benefits if they lose their jobs.

To estimate the Unemployment Insurance (UI) taxes that platform companies would have owed in Texas if workers were classified as employees, we used two complementary datasets using Nonemployer Statistics (NES) data from the US Census Bureau:

1. Estimating the Number of Platform Workers

To estimate the amount platform companies would pay in unemployment insurance taxes if their workers were classified as employees, we first estimated the number of platform workers in Texas that year using two data sets from the American Community Survey (ACS) conducted by the US Bureau of Labor Statistics:

We used ONE data to identify occupational subcategories in nonemployer sources directly engaged with known digital platforms, including ride-hailing, delivery, and other gig-based or family-type services.

We used the other dataset to cross-reference and triangulate wage-access data (minimum, maximum, and average). These filtrings captured both primary and secondary wage-earnings, including workers who performed platform work as a part-time or occasional basis.

2. Estimating Platform Business Revenue in the US Marketplace

Because NES data does not include income distributions, we approximate the share of revenue attributable to Texas using the state's share of US gross domestic product, a standard proxy for economic activity. This provides a conservative estimate of platform revenue in Texas, assuming that platform revenue is roughly proportional to GDP, though it does not capture the year-to-year income distribution within the state.

3. Calculating Income Earnings

We ran a bounding exercise using three earnings buckets (the same US Tax Bracket, 15% and 25%) to estimate the range of potential UI contributions across platforms. [illegible] Accounting a modest distribution of earnings in Texas, we apply the same approach to estimate UI contributions. We then multiply the estimated number of workers by average earnings for these workers to the US.

4. Estimating Unemployment Insurance Contributions

For workers earning less than $15,000:

Total Base Earnings = Number of workers * Average Earnings

Total Base Earnings = 50,000 workers * $15,000

Total Base Earnings = $1,000,000,000

For workers earning more than $15,000:

Total Base Earnings = Number of workers * US Base Threshold

Total Base Earnings = 50,000 workers * $15,000

Total Base Earnings = $1,000,000,000

5. Applying Tax Rates (Low and Medium):

For workers earning less than $15,000:

Estimated UI Payments = Total Base Earnings * Tax Rate

Estimated UI Payments = $1,000,000,000 * 1.5%

Estimated UI Payments = $15,000,000

For workers earning more than $15,000:

Estimated UI Payments = Total Base Earnings * Tax Rate

Estimated UI Payments = $1,000,000,000 * 2.5%

Estimated UI Payments = $25,000,000

Because platform companies are not currently required to report how many workers they employ in Texas, Human Rights Watch used the best available data to estimate. The Nonemployer Statistics (NES) dataset—which includes mission workers who do not file tax returns, including those with very low earnings, informal work arrangements, or unreported income. As a result, the true scale of platform work and associated tax losses are almost certainly underestimated.

The Way Forward

The coming years will be pivotal in defining decent work rules for the platform economy. The International Labour Organization (ILO) Governing Body has scheduled discussions on a standard-setting agenda for platform work, with decisions expected to direct the global work in the platform economy.[101] The development agenda for the first the ILO to advance discussions and, ideally, approve an international convention that establishes guidelines ensuring fair work standards for the millions of workers providing services via digital labor platforms globally.

In addition to the government officials and unions advocating for this agenda within the ILO, over 300 platforms, business, and researchers formed a global Platform Work Coalition in 2023 to advance Platform Economy.[102] The manifesto calls for the approval of an international convention to secure decent work standards for platform workers.[103]

This report contributes to these discussions, documenting the ways in which platform companies have exploited the margins of the law to create a new labor model that undermines decent work standards, weakens collective bargaining rights, and perpetuates patterns of inequality. Digital labor platforms can and should take immediate steps to uphold their responsibility to respect workers' rights, which are denied them. But fully addressing these violations requires broader, transnational of platforms work, beginning with regulation that rebalances power between platforms and workers. Such reform must establish a minimum floor of procedural effort to ensure rights and protections, impose complementary guardrails on AI in the workplace, and establish a universal and adequate social security system for all workers. These reforms should be tailored to address historical racial and gender based economic disparities that are endemic to the US labor market, and designed to platform work.[104] The following policymakers and regulators should prioritize the following reforms:

1. Proper employment classification
2. Protection from algorithmic exploitation
3. Guarantee of fair and living wages
4. Provision of universal and adequate social security
5. Protection of workers' agency and bargaining power

Two Examples of Platform Work Regulation Reform

Introduced in and around the US from proposed to assess of platform companies to protect platform workers' rights, which are being prioritized against for private lobbies, including platform companies, and their trade associations.

California's AB5 (formally SB1511 AB5) is designed to offer and set the standard for worker classification, ensuring that workers are classified as employees unless companies can demonstrate they meet specific criteria, including independent control over work, absence of a predominant business relationship, and operating separately from the company. [illegible] Moreover, the state's labor ballotage, Proposition 22, exemptions platform companies from AB5 and allows them to classify workers as independent contractors while providing them with a limited set of benefits, including minimum wage and occupational accident insurance, and the right to form a worker association to negotiate with the platform. Critics argue that Proposition 22 undermines worker rights by prioritizing corporate interests over comprehensive labor protections, such as the ability to collectively bargain and access to the full spectrum of benefits and protections available to traditional employees.

Illinois Worker Classification Act (2024) sets the Rebuttable Presumption of Employee Status, ensuring that workers are presumed to be employees unless companies demonstrate they meet specific criteria, including independence in performance and control over work, absence of a predominant business relationship, and operating separately from the company. This approach shifts the burden of proof onto companies, ensuring that workers are presumed to be employees unless companies can prove they meet specific criteria, including independence in performance and control over work, absence of a predominant business relationship, and operating separately from the company. The Illinois approach aims to prevent misclassification by ensuring that workers are presumed to be employees unless companies can demonstrate they meet specific criteria, thereby ensuring that workers receive the protections and benefits they are entitled to.

Washington State's Proposed Platform Work Regulation Reform

The Washington State Legislature is considering several bills to address the challenges posed by platform work, including proposals to classify platform workers as employees by default, ensuring access to minimum wage and overtime protections, and providing collective bargaining rights. The state's approach emphasizes the importance of balancing the flexibility of platform work with the need to protect workers' rights and ensure fair compensation. The proposed legislation aims to create a more equitable framework for platform work, ensuring that workers receive the protections and benefits they are entitled to, while also promoting the sustainability and growth of the platform economy.

Proper Employment Classification

The US should urgently develop standards and policies that ensure platform workers' proper classification as employees. These should heed the ILO's recommendations against "disguised employment relationships":[105]

> National policy should at least include measures to combat disguised employment relationships in the context of, for example, other relationships that may include the use of other forms of contractual arrangements that hide the true legal status, among employers and workers, for example, situations in which the employer relates to a person as an individual as either than an employee in a manner that hides his or her true legal status as an employee, and that situations arise where contractual arrangements have the effect of depriving workers of the protections that are due.

The "ABC" test is an engagement classification standard that would be consistent with this recommendation.[106] This test shifts the burden to employers to demonstrate that they have properly classified their workers as independent contractors. The worker is presumed to be an employee unless their employment meets the following criteria:

- (A) **Control:** the worker operates independently, free from employer control;
- (B) **Scope of work:** the worker's tasks fall outside the usual course of the employer's business; and
- (C) **Independent business:** the worker is engaged in an independently established business.

Federal, state and local authorities that adopt the ABC test as a comparable standard should ensure that workers who fail the test are classified as employees, minimum wage and employment protections where waiting for platforms. Legislation such a standard would also ensure that platforms pay the required amount of social security and other benefit contributions to protect their rights for workers.

Platforms standard in this report—and any similar platform engaging workers in comparable ways—should voluntarily classify their platform workers as employees. They should also refrain from labor practices that obscure their true employment status such as agreements that require workers to sign that they are independent contractors as a condition of working for the platform.

The US Department of Labor could also provide additional guidance that would be classified as employees under its rules, which would make them eligible for protections under the Fair Labor Standards Act (FLSA). This would ensure that platform workers receive protections such as minimum wage, overtime pay, and the right to form unions, which are crucial for addressing the issues of low wages and independent contractors. Congress should also amend the definition of an employee under federal workplace discrimination laws, such as Title VII of the Civil Rights Act, to ensure that platform workers are covered. Without this amendment, platform workers do not have the same protections against discrimination that employees receive.[107]

Algorithmic Fairness

Rectifying the misuse of algorithms in degrees wages, obscure rear earnings, and penalize workers will require the US to pass strong privacy protections for workers with robust safeguards against algorithmic decisions making that negatively affects working conditions.

Protecting Workers' Privacy

Protecting the privacy of platform workers begins with clear limits on collecting their personal data. The International privacy organization Privacy International has proposed restricting such collection to data that is "necessary for the performance of the contract between the worker and the platform and for no other purpose."[108] Under this standard, platforms should be prohibited from collecting personal geolocation and device usage data when they are not working or working week.

Abuses of workers' personal data are frequently difficult to challenge because they occur behind closed digital platforms. Workers rarely know what data or information about the existence of automated decision making that uses their personal data, how such decisions making works, and how it affects them.[109] This will also enable workers to contest automated decisions that affect their work without meaningful human intervention and other protection measures.[110]

The US should also establish a strong federal data protection law that empowers individuals to control how their personal data is used after they hand it over to an employer, company, or a government.[111] Many of the rigorous and robust privacy practices documented in this report, such as dynamic wage setting algorithms and surveillance of workers' off-the-clock activities, would be illegal under a law that platforms must collect the legitimate purposes for, example, that personal data used to dispatch work requests or track progress can also be used to target and penalize wage and bonus offers.

To prevent the abuse of workers' personal data, federal and state authorities should set legitimate collected data from platform workers only for such allocation and performance management functions that do not pose an unacceptable risk to workers' rights. The European Union's General Data Protection Regulation (GDPR), for example, requires personal data to be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed" in a manner that is incompatible with those purposes.[112] The GDPR's data minimization approach is in line with human rights principles of necessity and proportionality.[113] While privacy laws mandated under the GDPR's principle intensive provisions allow for problematic exceptions, it provides a starting point for meaningful regulation.[114]

The European Union's platform work directive (2024) places clear limitation on platforms' ability to access, process, and store workers' personal data. In addition to concerning platforms' ability to process workers' biometric data for identification purposes, the directive states, that:

> (e) Digital labour platforms should not, by means of automated monitoring systems and by means of any automated system used to support or take decisions affecting persons performing platform work, process personal data concerning persons performing platform work of the person performing platform work, process any personal data in relation to their private conversations, collect any personal data while the person performing platform work is not offering or performing platform work, process any personal data in relation to the health of persons performing platform work, except in exceptional circumstances, the rights of collective bargaining and action or the right to information and consultation, as defined in the Charter, and they should not process personal data in cases such as ethnic origin, migration status, political opinions, religious or philosophical beliefs, disability, sexual life or sexual orientation. Recital 41 of the directive, the collection of psychological tests, trade union membership or sexual life or sexual orientation.[115]

The GDPR and the platform work directive both contain provisions for automated decision-making. Specifically, Article 22 of the GDPR provides the right to request relevant information around automation, and to contest where they are impacted by automated decision making; the platform work directive states that platform must communicate to workers in an accessible format regarding where and how automation is used to manage their work.[116]

AI-Related Safeguards

Rights-based regulation of algorithmic management practices should govern the entire life cycle of the algorithmic system, from data collection and use to the development of the system, to deployment and modification. Such regulation should, at a minimum, ban algorithmic management practices that pose an unacceptable risk to workers' rights; the systems that cause manageable risks, the regulation should impose mandatory impact assessments, audits, accountability measures, and other safeguards that minimize the workers harm to them.

Red Lines

Human Rights Watch's research identifies three algorithmic management practices that should be banned altogether: *i. dynamic wage-setting algorithms, ii. wage based work allocations, and iii. fully automated dismissals.*

Dynamic wage setting algorithms pose threats to workers' economic security and dignity. Dynamic wage setting algorithms used by platforms frequently price-gouge workers for a similar proportion of their workers. Such systems deny prevent platform workers and consumers about how earnings. It is also doubtful that existing privacy and AI-related safeguards can adequately address the harms that dynamic wage setting. Will effectively mitigate the effects of these algorithms. Production Research, a technology and labor expert, has argued that these inadequacies justify a "unremittable ban on algorithmic wage discrimination, including, a ban on compensation through displaced pay gap." This explains:

> While banning primarily bans the algorithm works might discount workers' ability to understand and contest pay, it also stops machine learning systems change compared to the original tendencies of legal requests and subsequent adjustments, this knowledge will have been discovered subject to assess control on the job or on wage standardization is a fair and predictable way.[117]

Rating's based work allocation Platforms have failed to sufficiently demonstrate that using customer ratings as metrics for assigning work leads to fair compensation for workers, based on an accurate and non-discriminatory assessment of their performance. Research has found that these rating systems are biased, mechanisms that are supposed to enable workers to challenge unfair or biased ratings often do not provide effective redress. Even when unfair or biased ratings are reversed, platforms do not mitigate the resulting negative impact to workers' income. Digital labor platforms should be required to decouple ratings systems from decisions about how to assign work.

Fully automated dismissals Human Rights Watch has found that decreasing workers' accurate reputation or permanently has a significant negative impact on their ability to enjoy their human rights, in particular their rights to an adequate standard of living and to work. Workers who face such dismissals should have the temporary loss of earnings back and be delayed entry to automated systems. Automation assisted decisions should be subject to strict safeguards, which are detailed below.

Impact Assessments

Algorithmic impact assessments have become a cornerstone of human rights due diligence, ensuring that the impacts of algorithmic management practices are transparent, and conducted in consultation with impacted workers. Platform companies should aim be performed to introduce or modify an algorithm that significantly affects working conditions, including the company discovers that it can effectively mitigate the risks these changes pose to workers' rights. It is not clear how frequently, if at all, platforms have been doing this. Uber's Human Rights Report which cited as the seven examples of Uber's digital transformation, including assessments or other relevant risk assessments to calculate the impact of algorithmic systems on working conditions, and to share relevant documentation, but did not receive an answer to this question from any of the companies.

Platform algorithms that significantly affect working conditions should also be subject to a regular program of audits throughout their lifecycle. The Aula Lecturer Institute, an artificial intelligence policy research center, sets out two central categories of auditing practices: *i. technical audits*, conducted by the developer (in-house audits) or by third parties (third-party audits), which evaluate the algorithm for bias or errors; and *ii. regulatory audits* conducted by a government that investigates an algorithm for compliance with applicable laws and policies, taking into account "the context (in which) a system is used" including "the organizational governance and human behavior around it."[118]

Digital labor platforms should be required to conduct or commission regular technical audits of relevant algorithmic systems, such as their ratings and ranking systems, platform hot audit's listings and other algorithms affecting contractors' action. These audits could have, for example, proactively identified and rectified glitches in Amazon and Digital's ratings system that unfairly penalized workers from dangerous to avoid and upon recognizing this.[119]

A handful of federal agencies are empowered to conduct regulatory audits of platform algorithms. The Federal Trade Commission, which enforces antitrust laws and prohibits unfair and deceptive trade practices, has authority to conduct investigations and issue civil penalties against violators. Similarly, the government has investigative authorities for compliance with applicable laws and policies, taking into account "the context (in which) a system is used" including "the organizational governance and human behavior around it."[120]

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digital platform platform, a possible basis for an investigation into how unique wage setting algorithms and features of Korean schemes enhance standard workers about their true earnings and reduce them to work long hours for low pay.[277] The Equal Pay Commission, a tripartite body comprising of employers, workers and government, could invite its authority to conduct technical studies under Section 7(2) to investigate whether the algorithms contains that digital labor platforms use to assign, pay, and rate workers have a disparate impact on the earnings of women, people of color, workers with disabilities, and migrants.[278]

Regulating complex technology in a growing industry requires a concerted, multi-agency approach that brings technical, policy and labor expertise to bear on algorithmic systems that are changing the nature of work. Kim Bagles, Fellow in Governance Studies at the Brookings Institute, has urged the White House to convene a cross-agency task force to coordinate enforcement of existing laws and agencies to audit algorithmic systems.[279] Experts with data discrimination expertise, particularly in sociology, technology, law, and policy, would also be needed for such audits.

Effective remedies

Platform workers should have access to an effective remedy when they are unfairly fired or penalized by algorithm systems. To protect workers from unfair discriminations, the federal and state governments should recognize the rights of workers to bring claims against discriminatory algorithm systems in courts and challenge such decisions regardless of their employment status. These rights should apply to dismissals of any kind.

To meaningfully challenge unfair discriminations, workers must first understand that they have been discriminated against. Platform companies should disclose the reasons for their deactivations, and the process and timelines for appealing the deactivations. They should also have the right to request the platform to conduct a human review of the deactivation, and a written response explaining the decision affirming or reversing the decision within a reasonable time.

To help ensure accountability and oversight, workers should be able to appeal deactivations that the platform has taken against other internal review to an independent third party. In a big example, the state of Washington enacted a process for appealing decisions to discharge from unfairness directly to an independent dispute resolution process, which "provides employees with a fair, impartial and efficient representation to their grievances".[280] The process offers such fairness and efficiency provisions: it exempts certain types of discriminations from third party review, such as those based on allegations of fraud, discrimination and harassment, and does not cover fixed and plurality delivery workers. A legislative proposal to create a similar process for Washington Transportation Network Company (TNC) Delivery Drivers, would also establish mechanisms for voluntary and binding arbitration.[281]

When the platform or an independent appeals mechanism has found that a worker's account has been deactivated unfairly in review, the platform should reactivate the worker's account immediately, and compensate workers for lost wages during the period of deactivation.

Guarantee of Fair and Living Wages

The US Department of Labor should extend the Fair Labor Standards Act coverage to all platform workers by classifying them as employees to guarantee they earn at least the minimum wage and overtime premium pay. Misclassifying workers as general or specific categories of workers, such as domestic service workers, artists, certain conditions,[282] is, in sum, the Department of Labor proposed to modify Wage and Hour Division regulations to cover in another by determining employee or independent contractor classifications under the Fair Labor Standards Act, "the economic reality of the relationship between the worker and the alleged employer. The DOL adopted the proposed rule to reduce risk of misclassification as independent contractors.[283]

The federal minimum wage has fallen to a wage recovery for an adequate living wage. Nearly 1 in 10 workers earn wages below the federal poverty line and 1 in 5 earn wages.[284] Numerous studies have indicated that this rate is insufficient to narrow an adequate standard of living and if kept up with inflation should have been five per hour in 2019.[285] Congress should decouple a living wage from the minimum wage and the federal minimum wage accordingly, ensuring it is automatically indexed to inflation starting between.[286]

When is considered a living wage varies between countries and localities. According to MIT, it should consider the following costs, after their schedule and direct protection by the state, food, childcare, healthcare, housing, city transportation, broadband, transportation, income and payroll taxes, and other necessities.[287]

The wages provided should also be transparent. In addition to enforcing from dynamic wage setting algorithms, platforms should ensure that the wage formula they adopt enable workers to clearly understand how they are paid and how those wages are calculated. Worker rights advocates have, for example, called for grocery delivery platforms to return to a commission based model of compensation, as this accurately reflects the time and effort invested in each order.[288]

Provision of Universal and Adequate Social Protection

The federal and state governments should guarantee that platform workers are covered by adequate social security programs that ensure financial security during life crises contingencies, including income security during injury, illness, old age, and unemployment, and provide access to health care, paid family and medical leave, survivorship, maternity, and healthcare with children. This requires the development of rights-adapted policy, legal, and administrative frameworks that adapt to the dynamic nature of platform work.

First and foremost, platform workers should be accurately classified as employees. Proper classification would not only guarantee workers' access to the social security and other labor rights, but it would also strengthen the overall social security system. By addressing worker misclassification, platform companies would be required to contribute their share to social security, including unemployment insurance, workers' compensation, and other mandatory benefits, enhance protection for all workers by expanding the insurance pool, and relieve the financial risks across the workforce.

As the economy, as mechanisms ensure not long-term, but of a transitional nature, social security programs should be expanded to include self-employed workers, including those with low incomes. Among contributory programs are accessible to all workers, regardless of their employment status, would protect the rights of platform workers and benefit the broader population of informal workers.[289]

In terms of concrete legislation, the Department of Labor should expand paid sick and paid family leave programs to cover platform workers. In Texas, the proposed Family and Medical Leave Act (FMLA) would provide 12 weeks of paid leave with up to 26 weeks of unpaid leave, allowing workers to take time off to care for a family member.[290] The cost for the program would be spread across employers and workers.[291] The National Partnership for Women and Families estimates that the act would reduce by 20 percent the number of working families in Texas facing significant economic insecurity when sickness and medical issues.[292]

Additionally, the Department of Labor (DOL) should provide regulatory guidance and policy recommendations to expand eligibility criteria to include platform workers. The DOL should also provide guidance on portability of benefits and coverage to these workers. Hence, guided by the principle of the ABC test, should ensure that all workers have unimpeded access to unemployment benefits and that benefit levels adequately reflect the workers' economic, social and physical rights, including in particular the right to an adequate standard of living. The Texas Workforce Commission should review the acceptance criteria in the Section 8(c.(a) of the unemployment Code on Misrepresent Status, which unjustifiably excludes platform workers from unemployment insurance.[293]

The US should ensure that everyone has access to the highest attainable standard of physical and mental health, regardless of their status. The Department of Labor should consider measures taken by many other high-income countries, such as creating public healthcare system that is universally accessible for all, universal health insurance coverage, or some combination of these two. In recent years, many including Washington, California, New York, and New Jersey have experimented with policies that can provide universal policy that ensures universal health care.[294]

While building toward a single-aligned healthcare system, US authorities should require all applicable large employers to provide health insurance coverage for all workers that meet the principles of the ABC test. Additionally, states that have not implemented the so-called Medicaid expansion, which, among other things, expands the public health plan's coverage to single persons without dependents, should also adopt legislation emerging from comparison of the pandemic and other crises.

Another pathway to social security is facilitating benefits portability between jobs while ensuring continued protection. For example, in France, the supplementary insurance scheme was modified in 2014 to introduce "refillable rights" back schemes allow workers to accumulate benefits continuously, ensuring the transition between jobs do not jeopardize their social protection.[295] In Germany, unemployed workers can receive their unemployment insurance benefits fund France for platform companies, enabling workers to access both insurance, retirement, and paid vacation benefits, irrespective of their employment classifications.[296]

Protecting Workers' Autonomy and Bargaining Power

The US should revise its existing legislation to grant platform workers the rights to form associations and collective bargaining, in accordance with the international labor rights standards.

A present step in this direction would be the passage of the federal Richard L. Trumka Protecting the Right to Organize Act. (PRO Act), which would strengthen collective bargaining protections and broaden their coverage.[297] Specifically, it would extend to workers classified as employees under the ABC test. By passing the PRO Act, the US would get closer to meeting its obligations under international law by eliminating many of the barriers that prevent workers from exercising their rights to organize a union, extending bargaining protections to an estimated 10 million platform workers.[298]

In addition, alternative models of platform work can enhance the power imbalance between workers and platform companies. Platform cooperatives, sometimes you give platform workers an ownership stake in a company and a democratic further than acting as a labor licensing a company and workers, platform cooperatives are so a common proposal on which workers and other actors while connecting with one another. Owning the platform means owning the data and building models as the platform grows, increasing the powers of exploitation appears in the dominant models of today.[299]

International Human Rights Law

This report is about the human rights abuses of United States platform work. While the US has not yet ratified the International Covenant on Economic, Social, and Cultural Rights (ICESCR), it has signed the treaty and is bound by its terms conflicting with the treaty's object and purpose. The issue addressed in the report implicates a range of human rights protected under ICESCR and other international law standards, including the International Covenant on Civil and Political Rights (ICCPR), which the US has ratified.

These include the right to an adequate standard of living, the right to just and favorable conditions of work, the right to privacy, the right to safe and healthy working conditions, the right to social security, the right to health, and the right to unions.

Right to an Adequate Standard of Living

The Universal Declaration of Human Rights (UDHR) states that everyone has a right to "standard of living adequate for the health and well-being of himself and of his family, including food, clothing, housing and medical care and necessary social services."[300] Article 11 of the ICESCR elaborates on this right.[301] The US ratification of the ICESCR, the United States Senate stated that the phrase "adequate and related obligations of the various components of the right as including the rights to housing, food, water, and sanitation."[302]

Right to Just and Favorable Conditions of Work

International human rights law protects a spectrum of workers' rights, and mostly rights related to just and favorable conditions of work. The UDHR provides that everyone has the rights to rest and leisure, including reasonable limitation of work hours and periodic holidays with pay.[303] The ICESCR enumerates these rights by recognizing the rights of all persons to just and favorable conditions of work.[304]

Though a living wage is not mentioned defined under international law, the UDHR states that "everyone who works has the right to just and favorable remuneration ensuring for himself and his family an existence worthy of human dignity, and supplemented, if necessary, by other means of social protection."[305] The ICESCR elaborates on this right, stating that "the right of everyone to the enjoyment of just and favorable conditions of work," including "fair wages and equal remuneration for work of equal value," "a living for themselves and their families."[306]

According to the US Committee on Economic, Social and Cultural Rights, which issues authoritative interpretations of the ICESCR, the right to just and favorable conditions of work requires a legally mandated minimum wage that is "non-discriminatory and non-derogatory, fixed by taking non-consultative relevant factors into account, and adjusted from time to time to take into account living the workers and their families."[307] The Committee has stressed that the minimum wage should "apply systematically" and protect as much as possible "the labour usage of workers, including workers in vulnerable situations."[308]

For workers with "precarious contracts," such as zero-hour workers, the CESCR has emphasized that "supplement to the wage, as well as other measures to guard against arbitrariness, may be necessary in the interest of fairness to mitigate the lack of job security."[309]

Right to Privacy

The opaque algorithmic models that app-based companies use to assess and set wages and manage workers' performance are created and refined using personal sensitive data about workers' locations, habits, and activities. This collection and use of workers' personal data violates respect and protect workers' internationally recognized rights to privacy.

Article 12 of the UDHR, which the US has ratified, gives everyone the right to "protection of the law" against "arbitrary or unlawful interference with [their] privacy, family, home or correspondence, or unlawful attacks upon his honor."[310] The Human Rights Committee, the treaty body charged with overseeing implementation of the ICCPR, has found that the collection and storage of personal data by private entities must be regulated by law.[311]

Data protection is an inescapable component of the right to privacy. According to the non-profit group Privacy International, "Data protection laws safeguard our fundamental rights to privacy by regulating the processing of personal data providing the individual with rights over their data, and setting up powers of accountability and clear obligations for those who control or undertake the processing of data."[312] The European Union's General Data Protection Regulation Rights to such recommended that Annex "Lyfting" across Europe and comprehensive privacy legislation, including on data privacy, that complies with international human rights law in terms of adequacy, oversight and enforcement effectively protect the rights to privacy.[313] The US Human Rights Commission has similarly recommended that in order to fulfill its obligations under the ICCPR, gathering and holding of personal information, – whether by public authorities or private entities – must be "subject to the rule of law."[314] The Committee concluded that Article 17 of the ICCPR also establishes "the right to be free from an intelligible form whether, and if so, what personal data is stored in automatic data files, and for what purposes", and that individuals have the right to "request rectification or elimination" when their personal data is processed incorrectly.

The ILO and various countries have recommended those grounded principles monitor specific protections. In, says ILO stated that "some way of collecting and processing personal data, automated or not, should be subject to a set of Protection to guide the protection of workers' personal data."[315] Although the ILO is not legally binding on ILO member states, its recommendations provide a useful framework for understanding and challenging how app-based companies implement and practice workers using their personal data. As of 2019, the US was the largest member state and the biggest of the ILO.[316]

The cards specifies that workers have the rights to learn how their personal data is collected and processed, including "the rights to examine and obtain a copy of any records" that include their personal data. The "transparency of the processing and the right to information concerning the processing of personal data" includes limiting employers' access to such data to "purposes known to the worker, lawfully and unexpectedly defined before their collection."[317] Workers should also have the rights to "demand that incorrect or incomplete personal data be "deleted or rectified."

The United States has not yet developed either a federal data protection law, or meaningful standards to protect workers' privacy and prevent algorithmic discrimination in the workplace.

Right to Safe and Healthy Working Conditions

International human rights law protects the rights of all people to safe and healthy working conditions. In addition, as reaffirmed by the ILO Convention No. 155 adopted in 1994, Concerning the Elimination of Violence and Harassment in the World of Work, everyone has a right "to a world of work free from violence and harassment."[318]

The UDHR states that "[e]everyone has the rights to ... just and favorable conditions of work."[319] Similarly, the ICESCR guarantees "the rights of everyone to the enjoyment of just and favorable conditions of work which ensure ... safe and healthy working conditions."[320]

International human rights law also recognizes the right of all people to the highest attainable standard of physical and mental health.[321] Implementation of this right obligates states to take the necessary steps for the "prevention, treatment and control of epidemic, endemic, occupational and other diseases ... and the creation of conditions which would assure to all medical service and attention in the event of sickness."[322]

The CESCR, which has provided detailed guidance on implementation of the right to social security, has set out a list of "social protection floors" – such as access to healthcare and basic income security for children and adults – that should be considered as utilizing the minimum core contents of the right to social security, and other ILO social security instruments are minimum benchmarks for the provision of economically active persons, including platform workers.[323]

Right to Health

Health is a human right independent to the exercise of other human rights, and every human being is entitled to the enjoyment of the highest attainable standard of health conducive to living a life in dignity.[324]

The UDHR recognizes that all people have "the right to a standard of living adequate for the health and well-being of himself and of his family, including food, clothing, housing and medical care and necessary social services, and the right to security in the event of unemployment, sickness, disability, widowhood, old age or other lack of livelihood in circumstances beyond his control."[325]

Similarly, the ICESCR guarantees the rights to "an adequate standard of living" and "the enjoyment of the highest attainable standard of physical and mental health," including the "prevention, treatment and control of epidemic, endemic, occupational and other diseases" and the "creation of conditions which would assure to all medical service and medical attention in the event of sickness."[326]

Governments should ensure that everyone has access to the highest possible standard of health care, regardless of their ability to pay.[327]

Right to Unions

A widely accepted body of international norms has set forth standards for workers' freedom of association. The UDHR sets out that "[e]everyone has the right to form and to join trade unions for the protection of his interests."[328] The ICESCR similarly recognizes "[t]he right of everyone to form trade unions and join the trade union of his choice."[329]

This is further articulated in the ICESR, which states that "everyone shall have the right to freedom of association with others, including the right to form and join trade unions for the protection of his interests."[330] As a party to the ICESR, the US has committed to ensuring "the right of trade unions to establish national federations or other associations to may to organize effective" the right of trade unions and join trade unions and to ensure that any person whose rights or organize is violated "shall have an effective remedy."[331]

Workers' freedom of association in human rights instruments has been complemented by legal guidance on international labor norms developed in detail by the ILO. These norms set forth the right to organize, the right to bargain collectively, and the right to strike as fundamental rights. They are inextricably tied to the exercise of the right to freedom of association and must be protected without discrimination or interference by employers or governments. The ILO, bound by ILO Convention 87 and of dealing with freedom of association, stated that are not they have ratified these conventions, since freedom of association is taken to be a constitutional norm binding on countries by virtue of their membership of the organization.[332]

Under ILO Convention 87, "Workers, without distinction whatsoever, shall have the right to establish and, subject only to the rules of the organization concerned, to join organizations of their own choosing."[333] This includes self-employed and platform workers.[334]

ILO Convention 98 further explains that all workers should enjoy protection against discrimination (including his terminating the employment) and their union activities and bargaining interference by their employers.[335]

The US has not ratified Conventions 87 and 98 but has long acknowledged its obligation under them. In, said, the US Congress adopted as the Tell of a bestbank Declaration on Fundamental Principles and Rights at Work stating that:

> [T]he United States is committed to the promotion of universally recognized core labor standards, based on the core labor standards in the International Labor Organization Convention 87 and 98 and the ILO Declaration on Fundamental Principles and Rights at Work stating that:
>

> realize, in good faith and in accordance with the Constitution [of the ILO], the principles concerning the fundamental rights which are the subject of those Conventions, namely: (a) freedom of association and the effective recognition of the right to collective bargaining;...[494]

Corporate Human Rights Responsibilities

Even in the absence of regulations, under the UN Guiding Principles on Business and Human Rights (UN Guiding Principles), all businesses have a responsibility to respect human rights and ensure that they do not cause or contribute to actual or potential adverse human rights impacts.[495]

This refers to internationally recognized human rights; understood, at a minimum, as those expressed in the International Bill of Human Rights and the principles concerning fundamental rights set out in the ILO's Declaration on Fundamental Principles and Rights at Work .[496] The responsibility of business enterprises to respect human rights includes platform companies as it applies to all enterprises regardless of their size, sector, operational context, ownership and structure.[497]

Fundamental to identifying, preventing, and mitigating adverse human rights impacts is the requirement that companies carry out human rights due diligence to identify the possible and actual human rights impacts of their operations and to establish meaningful processes to prevent and mitigate those risks and remedy adverse impacts.[498]

In particular, the UN Guiding Principles state that businesses' human rights due diligence "should cover adverse human rights impacts that the business enterprise may cause or contribute to through its own activities, or which may be directly linked to its operations, products or services by its business relationships."[499]

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Region / Country United States, Economic Justice

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